

DVVNL v. Swati Kumari — PLA billing jurisdiction (notice)

High Court of Judicature at Allahabad · Single Judge · 4 December 2018 · WRIT - C No. - 39818 of 2018 · **Notice issued; PLA billing jurisdiction listed for consideration**

HEADNOTE

DVVNL's writ questioning whether the Permanent Lok Adalat had jurisdiction over a billing dispute, in view of Section 50 of the Electricity Act, 2003 and Clause 7(10) of the U.P. Electricity Supply Code, 2005, is entertained. Notice issued; merits not decided.

FACTUAL SUMMARY

Dakshinanchal Vidyut Vitran Nigam Ltd. approached the Allahabad High Court against Swati Kumari and another, questioning the Permanent Lok Adalat's entertainment of a billing dispute. The Court framed the issue as whether Section 50 of the Electricity Act, 2003 and Clause 7(10) of the U.P. Electricity Supply Code, 2005 barred such jurisdiction. It issued notice to respondent no. 2, directed a counter-affidavit within six weeks and a rejoinder thereafter, and listed the matter for consideration.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::procedural-listing

PLA jurisdiction over billing — notice

HOLDING

The writ is entertained solely to examine whether the Permanent Lok Adalat had jurisdiction to entertain a billing dispute in view of Section 50 of the Electricity Act, 2003 and Clause 7(10) of the U.P. Electricity Supply Code, 2005. The matter requires consideration; notice is issued; no merits determination is made.

¶ 1-2

PRINCIPLE TAGS

procedural-listing-no-construction

DVVNL's writ questioning whether the Permanent Lok Adalat had jurisdiction over a billing dispute, in view of Section 50 of the Electricity Act, 2003 and Clause 7(10) of the U.P. Electricity Supply Code, 2005, is entertained. Notice issued; merits not decided. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PERMANENT LOK ADALAT HAD JURISDICTION TO ENTERTAIN A BILLING DISPUTE IN VIEW OF SECTION 50 OF THE ELECTRICITY ACT, 2003 AND CLAUSE 7(10) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Writ entertained; merits expressly reserved for consideration after notice. ¶ 1-2